

1.	24CV0105	COCHRAN v. MARSHALL MEDICAL CENTER
Motion to Strike Memorandum of Costs / Attorney's Fees		

At the hearing on December 5, 2025, the Court denied Plaintiff's motion to tax costs; the Court found that the award of attorneys' fees to Defendant as prevailing party is appropriate and Defendant's counsel's billing rate is reasonable. The Court required Defendant to submit billing statements to support the attorneys' fee award and set forth dates for a briefing schedule on the issue of the reasonableness of fees claimed.

Defendant's counsel submitted the billing statements required. Per counsel's declaration, the work for this matter overlapped with the work for the related matter (see tentative ruling #2). Defendant requests that the court grant the request in full, with fees allocated 75 percent to this matter and 25 percent to the other matter. Plaintiff did not file any response questioning the amount of the bills. Given there are no objections to the reasonableness of the fees, the court grants Defendants' fee motion in full, finding the allocations between the two cases to be appropriate.

TENTATIVE RULING #1: DEFENDANT IS AWARDED \$79,818.75 IN ATTORNEY'S FEES, TO BE PAID WITHIN THIRTY DAYS OF SERVICE OF THIS ORDER.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.